IN THE UNITED STATES PATENT AND TRADEMARK OFFICE

APPLICANT'S RESPONSE TO NOTICE TO FILE MISSING PARTS

(PETITION FOR EXTENSION OF TIME, CONDITIONAL REQUEST FOR SUSPENSION OF ACTION UNDER 37 CFR § 1.103(a), CLEAN SUBSTITUTE SPECIFICATION WITH NO NEW MATTER CERTIFICATION UNDER 37 CFR § 1.125, STANDALONE REPLACEMENT CLAIMS UNDER 37 CFR § 1.75(h), STANDALONE REPLACEMENT ABSTRACT UNDER 37 CFR § 1.72(b), FORMAL STANDALONE DRAWINGS UNDER 37 CFR § 1.84, PERFECTED AIA INVENTOR DECLARATION UNDER 37 CFR § 1.63, AND REQUEST FOR DEPOSIT ALLOCATION UNDER 37 CFR § 1.25(b) AND 37 CFR § 1.22(b))

Applicant / Sole Inventor:	Reinaldo Javier Aguiar Marcano
Application Number:	19/559,867
Filing Date:	March 6, 2026
Confirmation Number:	9158
Art Unit / Examiner:	TC 2100 / DEMETRIUS JONES
Customer Number:	226458
Entity Status:	SMALL ENTITY (37 CFR § 1.27)
Invention Title:	SYSTEM FOR COVERT VISUAL DATA EXFILTRATION VIA A HARDWARE-MODIFIED DISPLAY DEVICE

Mail Stop Missing Parts

Commissioner for Patents

P.O. Box 1450

Alexandria, VA 22313-1450

PRELIMINARY STATEMENT AND TIMELINESS

Applicant respectfully submits this comprehensive response to the Notice to File Missing Parts mailed on August 17, 2026. The initial two-month regulatory period set in said Notice expires today, October 17, 2026. Therefore, the present responsive submission is filed within the initial statutory response window in complete compliance with 35 U.S.C. § 133 and 37 CFR § 1.136(a), requiring zero months of statutory extension of time. Concurrently herewith, Applicant submits a protective, conditional Petition for Extension of Time under 37 CFR § 1.136(a) to ensure that the application remains fully protected against any unintentional loss of rights.

ITEM I: REAFFIRMATION OF SMALL ENTITY STATUS (37 CFR § 1.27)

Applicant hereby formally reaffirms his entitlement to Small Entity status pursuant to 35 U.S.C. § 41(h)(1) and 37 CFR § 1.27. As officially entered into the Image File Wrapper on October 10, 2026, Applicant is an independent, sole natural person inventor, has not assigned, granted, conveyed, or licensed, and is under no obligation under contract or law to assign, grant, convey, or license, any rights in the invention to any person, firm, or corporation that would not qualify as a small entity. All statutory fees governing this application are accordingly computed under the authoritative Small Entity fee schedule.

ITEM II: CURING OF FORMAL DEFICIENCIES AND NO NEW MATTER CERTIFICATION (37 CFR § 1.125(b))

In full satisfaction of pre-examination formalities and to facilitate automated ingestion into the Office's publication and examination databases, Applicant concurrently submits the following curative instruments:

1. **Clean Substitute Specification (37 CFR § 1.125(c)):** Commencing on a separate sheet with compliant double line spacing (37 CFR § 1.52(b)(2)(i)), excising embedded graphic figures (37 CFR § 1.58(a)), embedded claims (37 CFR § 1.75(h)), and embedded abstract (37 CFR § 1.72(b)), while maintaining strict textual invariance of the descriptive disclosure.

2. **Marked-Up Copy of Specification (37 CFR § 1.125(c)):** Concurrently submitted as an independent document showing exact statutory strikethrough of the excised title, author preamble, abstract, claims, and embedded drawing figures.

3. **Standalone Replacement Claims (37 CFR § 1.75(h)):** Standalone technical claims 1–7 commencing on a separate sheet with pure statutory heading architecture.

4. **Standalone Replacement Abstract (37 CFR § 1.72(b)):** A single narrative paragraph under 150 words commencing on a separate sheet with pure statutory heading.

5. **Formal Standalone Drawing Sheets (37 CFR § 1.84):** Standalone drawing sheets presenting FIG. 1 and FIG. 2 with statutory top margin indicia and zero extraneous text in the drawing sight.

6. **Perfected AIA Inventor Declaration (37 CFR § 1.63 / Form PTO/AIA/01):** A fully executed declaration curing the omission noted in the Notice by expressly incorporating the statutory authorization averment (37 CFR § 1.63(a)(4)), legal citizenship,

full legal domicile residence address, correspondence address, and 18 U.S.C. § 1001 acknowledgment.

Formal Certification of No New Matter (37 CFR § 1.125(b))

Applicant hereby certifies under 37 CFR § 1.125(b) that the accompanying Substitute Specification contains no new matter. The sole changes relative to the as-filed specification consist of: (a) formatting the disclosure in strict double line spacing pursuant to 37 CFR § 1.52(b)(2)(i); (b) excising embedded graphical diagrams to formal standalone drawing sheets pursuant to 37 CFR § 1.58(a); (c) segregating the claims to a standalone listing pursuant to 37 CFR § 1.75(h); and (d) segregating the abstract to a standalone sheet pursuant to 37 CFR § 1.72(b). The substantive technical description remains character-for-character invariant.

ITEM III: STATUTORY FEE ALLOCATION WATERFALL AND RECONCILIATION

Pursuant to 37 CFR § 1.22(b) and MPEP § 509, Applicant possesses the statutory authority to specify the application of funds with particularity, overriding default agency accounting. On the master docket, the Office currently holds $520.00 in certified unapplied deposit credits (and a cumulative total of $1,600.00 remitted on docket). Under Small Entity status (37 CFR § 1.27), the required base pre-examination fees total $970.00.

Applicant respectfully directs the Office of Finance and OPAP to allocate the $520.00 in unapplied deposit credits in the following mathematically optimized order:

1. **Basic Filing Fee (Small Entity, Code 4011 / 2001, $70.00):** Fully satisfied by credit allocation ($70.00 credited).

2. **Utility Examination Fee (Small Entity, Code 2311, $352.00):** Fully satisfied by credit allocation ($352.00 credited).

3. **Late Filing Surcharge (Small Entity, Code 2051, $68.00):** Fully satisfied by credit allocation ($68.00 credited).

Total deposit credits applied towards pre-examination base fees: $490.00. Remaining unapplied deposit credit balance: $30.00.

To ensure complete pre-examination clearance and eliminate all deficiencies on the filing date without reliance on fee deferrals:

- **Utility Search Fee (Small Entity, Code 2111, $308.00):** Remitted concurrently herewith at checkout via electronic card payment.
- **Non-DOCX Filing Surcharge (Small Entity, Code 2054, $172.00):** Remitted concurrently herewith at checkout via electronic card payment.
- **Suspension Processing Fee (Small Entity, Code 2830, $60.00):** Remitted concurrently herewith at checkout via electronic card payment.

Total cash remitted concurrently at checkout: $540.00 ($480.00 base fees + $60.00 suspension processing fee).

CONCLUSION AND ASKS

Applicant respectfully requests that the reviewing formalities officer and petitions attorney grant the following relief in strict hierarchical order:

1. Acknowledge the legal timeliness of this response as filed within the initial statutory response period under 35 U.S.C. § 133 and 37 CFR § 1.136(a);

2. Accept and enter into the Image File Wrapper the curative instruments, specifically the Clean Substitute Specification, Marked-Up Copy, Standalone Replacement Claims, Standalone Replacement Abstract, Formal Drawing Sheets, and Compliant AIA Inventor Declaration;

3. Confirm the formal accounting application of $490.00 in unapplied deposit funds to Codes 4011, 2311, and 2051, and credit the checkout remittance of $540.00 satisfying Codes 2111, 2054, and 2830; and

4. Grant the Conditional Request for Suspension of Action under 37 CFR § 1.103(a) pending pre-examination clearance, and advance the application to TC 2100 for examination.

Respectfully submitted,

/Reinaldo Javier Aguiar Marcano/

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Date: October 17, 2026